



SPONSOR: Sen. Walsh & Sen. Sokola & Sen. Townsend &
Sen. Lockman & Rep. K. Williams & Rep. Minor-Brown
& Rep. Harris & Rep. Osienski
Rep. Heffernan

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 206

AN ACT TO AMEND CHAPTER 135 OF VOLUME 85 OF THE LAWS OF DELAWARE RELATING TO THE
DEADLINE FOR PAYMENT OF PROPERTY TAX BILLS FOR THE 2025-2026 TAX YEAR.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Section 1, Chapter 135, Volume 85 of the Laws of Delaware by making deletions as shown by
2 strike through and insertions as shown by underline as follows:

3 Section 1. Notwithstanding any provision of law to the contrary, on enactment of this Act:

4 (3) Upon receipt of a new warrant under paragraph (2) of this Act, New Castle County shall supplement any
5 tax bill already issued to taxpayers in that district for the 2025-2026 tax year and adjust initial billing using the new
6 local school tax rates set by the district. New Castle County shall extend the deadline for payment of property tax bills
7 for the 2025-2026 tax year that are supplemented or adjusted under this Act to ~~November 30, 2025~~. December 31,
8 2025.

SYNOPSIS

An extension of the deadline for payment of property tax bills in New Castle County for the 2025-2026 tax year established under Chapter 135 of Volume 85 of the Laws of Delaware (House Bill No. 242, as amended by House Amendment 1, of the 153rd General Assembly) is required because property tax invoices could not be timely delivered due to subsequent, unforeseen expedited litigation before the Court of Chancery (Newark Property Association, et al. v. State of Delaware, et al., C.A. No. 2025-1031-LWW).

The current deadline is November 30, 2025, however this Act changes the deadline to December 31, 2025, to ensure that taxpayers have a commercially reasonable period to review and pay property tax invoices and to help prevent the inequitable imposition of statutorily-mandated penalties and interest.

Author: Senator Walsh